Related Article/Schedule : 14

Supreme Court Judgement: It declared triple talaq i.e., 'talaq-e-biddat' (the Muslim practice that allows men to instantly divorce their wives) as unconstitutional. It held that this form of talaq is manifestly arbitrary in the sense that the marital tie can be broken capriciously and whimsically by a muslim man without any attempt at reconciliation so as to save it. Therefore, the court held this form of talaq to be violative of the fundamental right contained under Article 14 of the Constitution. Similarly, it declared Section 2 of the Muslim Personal Law (Shariat) Application Act, 1937, as void to the extent that it recognizes and enforces triple talaq. Further, it ruled that triple talaq is against the basic tenets of the Holy Quran and what is held to be bad in the Holy Quran, cannot be good in Shariat and, in that sense, what is bad in theology is bad in law as well. Moreover, the court directed the central government to make a law within six months to govern divorce in the muslim community. Till then, an injunction order of the court against the pronouncement of triple talaq would be in force.

Impact of the Judgement: This judgement led to the enactment of the Muslim Women (Protection of Rights on Marriage) Act, 2019. This act is popularly known as the Triple Talaq Act. It protects the rights of married Muslim women and prohibits divorce by pronouncing talaq by their husbands.

K.S. PUTTASWAMY CASE (2017)

Name of the Case	: K.S. Puttaswamy vs. Union of India
Year of Judgement	: 2017
Popular Name	: Right to privacy case
Related Topic/Issue	: Fundamental right to privacy
Related Article/Schedule	: 21

Supreme Court Judgement: It declared right to privacy as a fundamental right. It ruled that right to privacy is protected as an intrinsic part of right to life and personal liberty under Article 21 and as a part of the freedoms guaranteed by Part III of the Constitution. It said that privacy safeguards individual autonomy and recognizes the ability of the individual to control vital aspects of his life. However, it also stated that the right to privacy is not an absolute right and hence, is subject to reasonable restrictions which are placed on fundamental freedoms under Part III of the Constitution. This means that a law which encroaches upon privacy will have to withstand the touchstone of permissible restrictions on fundamental freedoms. In the context of Article 21, an invasion of privacy must be justified on the basis of a law which stipulates a procedure which is fair, just and reasonable. The law must also be valid with reference to the encroachment on life and personal liberty under Article 21. An invasion of life or personal liberty must meet the three-fold requirement of: (i) legality, which stipulates the existence of law; (ii) need, defined in terms of a legitimate state aim; and (iii) proportionality, which ensures a rational nexus between the objects and the means adopted to achieve them.

Impact of the Judgement: This judgement over-ruled the two earlier judgements delivered in *M.P. Sharma* case[24] (1954) and *Kharak Singh* case[25] (1962). In both the cases, the Supreme Court had held that the right to privacy is not protected by the Constitution. This judgement also clarified that the various judgements subsequent to Kharak Singh, which have recognized the fundamental right to